

TENTATIVE RULING

Case: **Grib v. Tesla, Inc.**
 Case No. CV2026-0954

Hearing Date: **September 10, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Tesla, Inc.’s (“defendant”) request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiffs Lyubov Grib and Andrey Grib’s (collectively, “plaintiffs”) objections to evidence are **OVERRULED**.

Defendant’s motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Kim Decl.; Ameripour Decl.) “A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) The Court finds that defendant has established the existence of an arbitration agreement between defendant and plaintiffs. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; Cal. Rules of Court, rule 3.1330; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; *Banner, supra*, 62 Cal.App.4th at p. 357; Kim Decl., ¶¶ 3-14.) The Court further finds that plaintiffs have failed to demonstrate that the arbitration agreement is unconscionable. (Grib Decl; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329 [both procedural and substantive unconscionability “must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability”]; *Carboni v. Arrospide* (1991) 2 Cal.App.4th 76, 83 [“there is a sliding scale relationship between the two concepts: the greater the degree of substantive unconscionability, the less the degree of procedural unconscionability that is required to annul the contract or clause”]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 87 [same].)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Horizon Contract Glazing, Inc. v. Klein**
Case No. CV2026-0960

Hearing Date: **September 10, 2026** **Department Thirteen** **9:00 a.m.**

Motion to strike:

Defendant Michelle Klein’s request for judicial notice is **GRANTED**. (Evid. Code, § 452, subd. (d).)

Defendant’s motion to strike portions of plaintiff’s first amended complaint (“FAC”) is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., §§ 435, 436.) Where a complaint fails to allege facts sufficient to support a punitive damages claim, the offending allegations and prayer are properly stricken. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63-64.) Oppression, fraud, or malice, each involve “intentional,” “willful,” or “conscious” wrongdoing of a “despicable” or “injur[ious]” nature. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) The FAC does not allege that plaintiff Horizon Contract Glazing, Inc. communicated to defendant that it could not operate without the requested information or defendant was not authorized to use plaintiff’s credit cards. (Opposition, pp. 3-6; See FAC generally.) Additionally, plaintiff does not allege facts showing that defendant misrepresented her “hours worked, compensation owed, or identity...” (Opposition, p. 4; See FAC generally.) Therefore, plaintiff’s FAC fails to allege facts sufficient to support a punitive damages claim. (See *Turman, supra*, 191 Cal.App.4th at pp. 63-64.)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Order to show cause:

Parties are **DIRECTED TO APPEAR**.